



CHINESE TERRITORIAL CLAIMS

A U.S. military surveillance plane recently collided with a Chinese jet over the South China Sea. The collision has had major international and economic implications involving China's territorial claim of a 200-nautical mile airspace corridor. This claim is contrary to international law.

On March 31, the U.S. military plane carrying sophisticated listening gear was flying over the South China Sea, when two Chinese jet fighters rose to intercept it. This cat and mouse game apparently is well known by both sides.

The U.S. plane was about 70 miles (113 km.) offshore when the collision occurred. The Chinese plane crashed into the sea. The severely damaged U.S. plane made an unauthorized emergency landing at Lingshui, a Chinese air force base on the island of Hainan. The 24-member crew and plane were detained by the Chinese military.

The Chinese demanded an apology from the United States as an apparent condition for the release of the crew and perhaps the plane. President George W. Bush's administration refused to apologize for being in Chinese airspace at the time of the collision because the U.S. plane was apparently in international airspace. A U.S. apology would be tantamount to recognizing Chinese territorial claims to a 200-nautical mile (230 statute miles) coastal corridor and the airspace above it.

Following World War II, countries around the world scrambled to claim adjacent ocean floor and the airspace over it. Until that time, most countries claimed only three-mile territorial limits. According to political geographer Harm J. deBlif et al (Geography: Regions and Concepts,

Wiley & Sons, 1988), "By 1986, only 17 countries still restricted their claim to (three) miles, whereas 90 countries claimed a 12-mile territorial sea; and no fewer than 15 countries demanded sovereignty over 200 miles of territorial waters."

The United Nations organized the first Conference on the Law of the Sea in the 1950s and additional meetings continued until 1982. The resulting international law permits each coastal country to claim a 12-nautical mile territorial sea (and airspace) as sovereign territory, where no foreign ships or airplanes may enter without permission. The convention also allows an additional 12-mile coastal zone, where the coastal country can exercise certain controls, according to deBlif, such as prohibitions on pollution being dumped by foreign ships.

Finally, the Law of the Sea allows countries to claim a 200-nautical mile Exclusive Economic Zone (EEZ), or 188 nautical miles beyond the 12-mile territorial sea. Controls on mining and fishing are generally the recognized activities that can be controlled in the EEZ.

This law does not allow a country to

between them. Complications abound where island groups are near one another. Hundreds of disputed claims have been settled through negotiations and in the International Court in the Hague, The Netherlands.

There are two Chinese ownership cases still unresolved in the South China Sea. An explanation of these cases may help explain some of the more subtle underlying reasons for China's demands for a U.S. apology.

The ownership of two island groups in the South China Sea, the Paracels and the Spratly Islands, is in dispute. Preliminary oil exploration indicates good possibilities that large oil resources may exist, not only around the islands, but in the South China Sea itself. Therefore, whoever owns these islands will also control the EEZ around the islands.

The significance of this situation cannot be understated for oil-poor China. With its few petroleum resources, China is anxious to claim as much of the area containing resources in the South China Sea as possible.

Currently, China claims the Paracel Islands, although Vietnam and Taiwan dispute China's claim. The islands lie almost equidistant from China's Hainan and Vietnam. The Spratly Islands ownership, however, is in even greater dispute, as China, Vietnam, Taiwan, Malaysia and the Philippines also claim ownership.

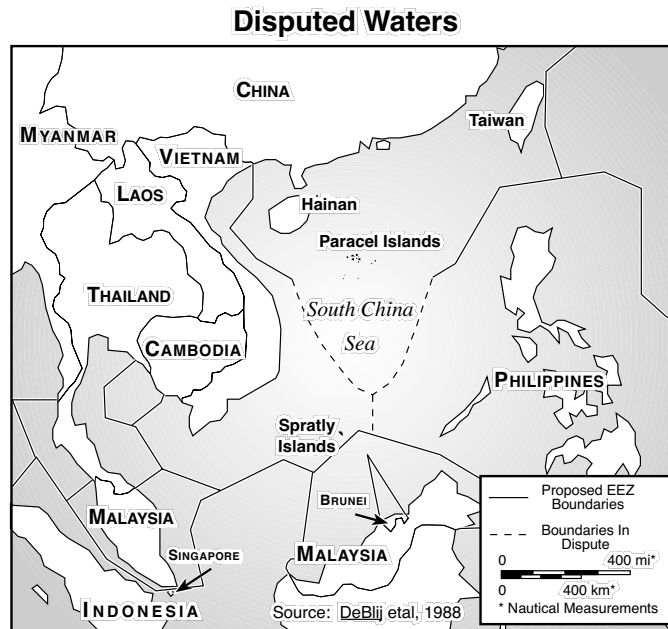
The Chinese government would like to have international recognition of a 200-mile territorial sea that would include the ocean and airspace around the Paracels and Spratly Islands. This would bring a huge area of the South China Sea and its potential resources under complete Chinese control. Finally, such a large territorial limit would eliminate future U.S. reconnaissance flights over the

South China Sea and keep these sophisticated listening systems far offshore.

Is there any wonder China wanted a U.S. apology? And is there any wonder that the United States refused to apologize for flying over international waters?

And that is Geography in the News. April 13, 2001. #567.

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legally claim the 200-mile EEZ as its territorial waters or airspace. Any territory outside the 12-mile territorial waters is classified as international waters and airspace.

There are many, many complications to the implementation of the 12-mile territorial sea, the additional 12-mile coastal zone and the 200-mile EEZ. For example, countries separated by a narrow body of water must equally divide the sea floor